12th City Council
27th Regular Session
Series of 2000

Republika ng Pilipinas
SANGGUNIANG PANLUNGSOD
Lungsod ng Dabaw

PRESENT:

Councilor Pilar C. Braga, Presiding Officer
Vice Mayor Luis C. Bonguyan
Councilor Senforiano B. Alterado
Councilor Wendel E. Avisado
Councilor Gerald B. Bangoy
Councilor Salvador V. Caingles
Councilor Clemencia D. Cataluña
Councilor Allan L. Dolor
Councilor Jimmy G. Dureza
Councilor Benjamin R. Duterte
Councilor Emmanuel D. Galicia, Sr.
Councilor Rene V. Galope
Councilor Luzviminda C. Ilagan
Councilor Cornelio Cesar Q. Isaguirre
Councilor Marlene A. Librado
Councilor Paz C. Mata
Councilor Tomas J. Monteverde, IV
Councilor Nenita R. Orcullo
Councilor Myrna G. L'Dalodo-Ortiz
Councilor Juan P. Pala, Jr.
Councilor Jose Maria Romano S. Pilay
Councilor Cornelio C. Reta, III
Councilor Pedro R. Salvador
Councilor Dioscoro B. Sampaga, Jr.
Councilor Martin T. Suelto
Councilor Isidro T. Ungab

ABSENT:

Councilor Isidro S. Calonia, Jr. - On Sick Leave

ORDINANCE NO. 092
Series of 2000

AN ORDINANCE REGULATING THE CONSTRUCTION, REPAIR, RENOVATION, ERECTION, INSTALLATION AND MAINTENANCE OF OUTDOOR ADVERTISING MATERIALS AND FOR RELATED PURPOSES

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled:

CHAPTER I
TITLE AND POLICY

SECTION 1. TITLE. This Ordinance shall be known as the Signage Ordinance of Davao City.

SECTION 2 - STATEMENT OF POLICY. It is the policy of the City Government of Davao to:

(1) safeguard its people's life and property by providing all signs and sign structures prescribed standards relative to their site, design, load and stresses, anchorage, quality of materials, construction and maintenance;

(2) keep its premises clean and orderly by imposing basic discipline and regulation in the location of signs and sign structures both in public and private places;

(3) display or convey only messages or visuals that conform to public decency and good taste; and

(4) install or display all kinds of signs in a manner that the harmonious aesthetic relationship of all units therein is presented;

CHAPTER 2
SCOPE AND APPLICABILITY

SECTION 3. SCOPE. The provisions of this Ordinance shall apply to all advertising and/or propaganda materials particularly on the design, location, site plan, construction, repair, removal, dismantling and maintenance of all signs and sign structures intended for advertisement and other related purposes.

SECTION 4 - APPLICABILITY. The provisions of this Ordinance shall be applicable within the entire territory and jurisdiction of the City of Davao.

CHAPTER 3
DEFINITION OF TERMS

SECTION 5 - DEFINITION. For purposes of this Ordinance the following definitions shall apply:

a. ADVERTISING SIGN - a sign that directs attention to a business, profession, commodity, services or entertainment conducted, sold or offered for public/private consumption exposed in an outdoor presentation.

b. ARCADE - any portion of a building above the first floor projecting over the sidewalk beyond the first storey wall used as protection for pedestrians.

c. BILLBOARD - a panel for posting bills or posters which exceeds six (6) sq. m. in area.

d. BUSINESS SIGN - an identification on premises or accessory sign that directs attention to a profession, business, commodity, service or entertainment conducted, sold or offered in the same place where the business is located.

e. BUILDING LINE - the line formed by the intersection of the outer surface of the enclosing wall of the building and the surface of the ground.

f. DISPLAY SIGN - any material, device or structure that is arranged, intended, designed, or used as an advertisement, announcement or directory that includes a sign, sign screen, billboard or advertising device of any kind.

g. DISPLAY STAND - any movable structure, table, showcase cabinet and the like where goods or periodicals are displayed.

h. DISPLAY SURFACE - the entire area enclosed by the extreme limits or perimeter of a sign.

i. DISPLAY WINDOW - that portion of a building abutting the sidewalk open to public view protected by grills, screens or transparent materials for the display of goods.

j. ELECTRICAL SIGN - any sign which has characters, letters, figures, designs, faces, backgrounds or outline illuminated by incandescent or fluorescent lamps or luminous tubes as part of the sign proper, neon signs included. These light sources being either external or internal.

k. GROUND SIGN - a sign resting on the ground.

l. HIGHLY-BUILT-UP URBAN AREA - a commercial and/or industrial site which is characterized by high-rise buildings or establishment.

m. NEON SIGN - a discharge lamp where the neon tube contains a large proportion of neon gas, made/outlined to project letters or characters for the purpose of advertising.

n. POSTER - a fabricated flat surface upon which a message is either posted or painted.

o. PROJECTING SIGN - a sign fastened to, suspended from or supported on a building or structure the display surface of which is perpendicular from the wall surface or is at an angle therefrom.

p. ROOF SIGN - any sign installed on roofs, roof decks, parapets or eaves.

q. SIGN - any letter, word, numeral, pictorial presentation, illustration, decoration, emblem, device, symbol or trademark, flag, banner, or pennant, or any other figure of similar character that is:

- attached to, painted on or in any manner represented on a building or structure

- used to announce, direct attention to or advertise and visible to the public

r. SIGNBOARD - a broad flat piece of wood or other material bearing information and/or advertising less than six (6) square meter in area.

s. SIGN STAND - any movable structure upon which a sign is mounted or supported.

t. SIGN STRUCTURE - that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

u. STREAMER - any advertising material made of light substance such as cloth, canvas, plastic and the like, hanged or installed outdoor for public view;

v. TEMPORARY SIGN - a sign of cloth or other light and/or combustible material, with or without frame, installed for a limited period of time.

w. WALL SIGN - a sign painted on, attached or fastened to the surface of the wall or any part of a building or structure, the display surface of which is parallel to the wall surface.

x. IMPRINT - a plaque or sticker or lettering to be painted on either the top or the bottom of the poster or sign as a means of identifying the company to whom the structure belongs and the permits issued therefor.

CHAPTER 4
GENERAL PROVISIONS

SECTION 6. (a) Signs shall promote and uphold the public good especially in historical monuments and shrines, natural scenic areas, parks and parkways. No sign shall be erected or installed in the above-mentioned areas at a distance of at least 50.00 meters from the periphery of said areas. Such condition shall be disregarded when signs and sign structures are in highly built-up areas.

(b) Signs which are written in foreign language shall have a corresponding translation either in English, in Filipino or in the local dialect;

(c) No sign or signboard shall be constructed as to unduly obstruct the natural view of the scenic landscape, which is likely to include the view of Mt. Apo and Davao Gulf.

(d) All signs, together with all of their supports, braces, guys, and anchors, shall be properly maintained. The display of all signs shall be kept neatly painted and secured at all times.

(e) Sign stands or display stands shall not be placed on sidewalk pavement, parks and street islands.

(f) Signs shall not be attached to, installed or displayed on posts or columns of arcades.

(g) Sign structures shall be designed and constructed to resist all forces in accordance with the National Structural Code for Buildings.

(h) Sign structures may be constructed only in areas where zoning regulations permit them in accordance with the accepted standards of design, construction and maintenance.

(i) Plans of sign structures exceeding 3.00 meters in height from the ground or roof level shall be signed and sealed by a duly registered Architect or Civil Engineer.

(j) Signs and sign structures built within highly restrictive fire zones, as determined by the Bureau of Fire Protection, shall be of incombustible materials. No combustible materials other than approved plastics shall be used in construction of electrical signs.

(k) Signs and Sign structures equipped with electrical devices shall have an electrical wiring plan conforming with the provisions of the National Electrical Code and duly signed by a Professional Electrical Engineer; provided, that, for installations not exceeding 600 volts and 4 kilowatts, a sketch diagram and Bill of Materials, signed and sealed by an Electrical Engineer or Master Electrician who will install the same shall be sufficient. All other permits exceeding their requirement may be approved by the local power company.

(l) Signs shall be placed in such a manner that no part of its surface will interfere in any way with the free use of doorway, fire escape, stand pipe, window, emergency exit or other required means of exit and fire-protective devices.

(m) No signs shall be erected or placed closer than a minimum of 1.00 meter distance from any electric and telephone posts or wires. Existing signs in the City poblacion pre-dating the requirements of subsection (n) hereof may still be allowed provided proper insulators from the local telephone and power companies shall be installed thereby.

(n) Signs shall be erected in such a manner as not to confuse or obstruct the view or interpretation of any public sign, traffic sign or device, nor obstruct the sight, distract the attention of motorists, reflect blinding light or cause glare to incoming traffic.

(o) The bottom line of all signboards adjacent to each other shall follow a common base line as determined by the Building Official.

(p) All sign structures, above 100 meters elevation from the main sea level and/or within the 5 kilometers radius from the airport, shall secure Air Transportation Office (ATO) clearance.

CHAPTER 5
SPECIFIC PROVISIONS

Article 1
Advertising Sign

SECTION 7 - BILLBOARD - Outdoor advertising signs shall not be allowed in a residential zone as designated in the Official Zoning Map. Adjacent billboards shall be erected in such a way as to maintain 150.00 meters unobstructed line of sight.

Billboards and other self-supporting outdoor signs along highways shall be located within a minimum of 10.00 meters away from the property lines abutting the road right-of-way.

SECTION 8 - REGULATED AREAS - Bridge approach areas within 200 meters of the following bridges shall be designated as "regulated areas" in order to preserve, among others, the natural view and beauty of the Davao River, Mt. Apo, the Davao City Skyline and the view of Samal Island, to wit:

1. Generoso Bridge I and II;
2. Bolton Bridge I and II;
3. Lasang Bridge

SECTION 9. ALLOWABLE HEIGHT FOR SIGN STRUCTURES IN REGULATED AREAS. Sign structures in regulated areas shall be limited to a maximum total height of 17.00 meters from the street crown, provided the first 3 meters from the street crown shall remain as open space. For this purpose, only the next 14 meters shall be allowed to be used as advertising surface. The top and bottom lines of billboards erected in said areas shall follow a common base line as determined by the Building Official.

Article 2
Business Signs

SECTION 10 - ALLOWABLE SIZE FOR BUSINESS SIGNS. Business signs shall have a length not exceeding the frontage of the lot.

SECTION 11 - SIGNS ON BUILDING. Business signs installed, displayed or erected on the same building shall preferably be of identified size and flushed against the building facade.

SECTION 12. SIGNS IN HIGHLY BUILT-UP URBAN AREAS. Business signs, in highly built-up urban areas, may not be allowed within the immediate approaches from the periphery of historical monuments, shrines, natural scenic areas, parks and parkways, notwithstanding Section 6 (a) of this Ordinance.

ARTICLE 3
Roof Signs

SECTION 13 - CONSTRUCTION OF ROOF SIGNS. The design and construction of roof signs shall conform with the provisions of Section 6 (h) of this Ordinance. In no case shall such signs be erected, attached to, installed or fastened on roof top of buildings of wooden structure.

Article 4
Ground Signs

SECTION 14. ALLOWABLE HEIGHT FOR GROUND SIGNS. Ground signs shall not exceed 12.00 meters in height above the street crown and in cases where there are no streets, on the ground level, and subject to other applicable provisions of this Ordinance.

SECTION 15 - LIMITATIONS. Ground signs shall not exceed 12.00 meters in height above the street crown, or the base of said ground signs.

1. It shall be located 1.00 meter within the property line, and in no case, shall occupy the street or sidewalk, passageways, alleys, easements or river abutments.

2. Public or Government signs erected or installed within the area of the sidewalk shall be so designed and located so that the same shall neither obstruct the easy passage of pedestrians nor distract the attention of motorists.

3. Self-supporting outdoor signs along highways shall be located at a minimum of 10.00 meters away from the property lines abutting the road right-of-way.

Article 5
Projecting Signs

SECTION 16 - PROJECTING SIGN, IN GENERAL. The erection of projecting signs are subject to the following conditions:

a. On NON-ARCADED STREETS OR WHERE ARCADES ARE PROPOSED - signs shall not extend more than 1.50 meters from the wall line or building line;

b. ON ARCADED STREETS.
Signs shall not project more than 1.20 meters from the wall line over the street.

c. BUILDINGS ABUTTING ON STREETS/ALLEYS WITHOUT SIDEWALKS OR PROVISIONS

The rules for arcaded streets shall apply on buildings abutting on street/alleys without sidewalks or provisions.

However, a clearance of not less than 3.00 meters shall be provided below the lowest part of such signs projecting over sidewalks on buildings without arcades and a clearance of not less than 5.00 meters shall be provided below the lowest part of such signs projecting over carriage ways.

SECTION 17. INSTALLATION OF PROJECTING SIGNS. The installation of electric neon signboards or other advertisements of similar nature projecting over roadways or public streets, shall be allowed, provided that:

a. Clear distance between the signboards installed in one building is not less than 4.00 meters;

b. Signboards on multi-storey buildings shall be installed in the same vertical line and shall not overlap each other;

c. Top of signboards shall not extend over the topmost part of the parapet of the bottom line of eaves of the buildings;

d. Horizontal projection of signboards shall follow the provision of Article 5, Section 16 of this Ordinance;

e. In case of two adjacent buildings, adjacent signboards shall be placed at a distance of not less than 2.00 meters from the common boundary line;

f. Vertical clearances shall follow the provisions of the last paragraph of Article 5, Section 16,

Article 6
Wall Signs

SECTION 18 - WALL SIGNS ATTACHED ON BUILDINGS. Display signs placed against the exterior surface of building shall not extend more than .30 meter from the wall with its lowest portion and not less than 3.00 meters above the sidewalk.

Provided, that, wall signs shall not extend beyond the top and/or sides of any face of the exterior perimeter walls of the building.

Provided further, that walls signs made of combustible materials shall not be allowed. While those made of incombustible materials may be allowed to cover the entire surface of blank wall, but in no case, be allowed to cover or obstruct opening.

SECTION 19 - LIMITATION. Display windows or wall signs within 3.00 meters above the sidewalk shall be flushed or recessed. Nonetheless, all signs painted or pasted on the exterior surface of buildings or structures are considered business or advertising signs.

Article 7
Temporary Signs

SECTION 20 - TEMPORARY SIGNS, IN GENERAL. All temporary signs, bills, posters and the like may be installed or posted only in areas or structures allowed by this Ordinance and all applicable statutes, rules and ordinances.

SECTION 21 - DISPLAY OF STREAMERS. Streamers strung along any public thoroughfare shall have the necessary permit from the Building Official. The lowest point of the bottom edge of streamers shall have a minimum clearance of 1.00 meter above the ground or pavement. Streamers must conform with existing Ordinances and in no case shall these streamers be allowed in restricted areas.

CHAPTER 6
LOADS AND STRESSES

SECTION 22 - LOADS AND STRESSES, IN GENERAL. Signs and sign structures shall be designed and constructed to resist wind and seismic forces as specified in the National Structural Code for Building (NSCB). All bracing system shall be designed and constructed to transfer lateral forces to the foundations.

For signs on buildings, the dead and lateral loads shall be transmitted through the structural frame of the building to the ground in such manner as not to overstress any of the elements thereof.

The overturning moment produced from lateral forces shall in no case exceed two-thirds of the dead-load resisting moment. Uplift due to overturning shall be adequately resisted by proper anchorage to the ground or to the structural frame of the building. The weight of earth

superimposed over footings may be used in determining the dead load resisting moment. Such earth shall be carefully placed and thoroughly compacted.

SECTION 23 - WIND LOADS. Signs and sign structures shall be designed and constructed to resist wind forces as specified in Chapter 2 of the National Structural Code for Buildings (NSCB).

SECTION 24 - SEISMIC LOADS. Signs or sign structures shall be designed and constructed to resist seismic forces as specified in Chapter 2 of the National Structural Code for Buildings (NSCB).

SECTION 25 - COMBINED LOADS. Wind and seismic loads need not be combined in the design of signs or sign structures, only loads producing larger stress need be used.

Vertical design loads, except roof live loads, shall be assumed to be acting simultaneously with the wind or seismic loads.

SECTION 26 - ALLOWABLE STRESSES. The design of wood, concrete, or steel members shall conform with the requirements of Chapters 3, 4, and 5 of the National Structural Code for Building. Loads, both vertical and horizontal, exerted on the soil shall not produce stresses exceeding those specified in Chapter 7 of the National Structural Code for Building (NSCB).

The working stresses of guy wire ropes or cables and its fasteners (deadman) shall not exceed 25 percent of the ultimate strength of the wire or fastener. Working stresses for wind or seismic loads combined with dead loads may be increased as specified in Chapter 2 of the National Structural Code for Building. All steel guy wires shall be provided with turn buckles for tightening.

CHAPTER 7
CONSTRUCTION

SECTION 27 - CONSTRUCTION, IN GENERAL. The supports of all signs or sign structures shall be placed on or upon private property and shall be securely built, constructed and erected in conformity with the requirements of this Ordinance.

SECTION 28 - MATERIALS. Materials for construction of signs and sign structures shall be of quality and structural grade as specified for buildings under this Ordinance.

In the absence of specified requirements, the materials and details of construction shall conform with the following:

1. Structural steel shall be of such quality as to conform with ASTM A 36. Secondary members in contact with or directly supporting the display surface may be formed out of light gauge steel, provided such members are designed in accordance with the specifications of the design of light gauge steel as specified in ASTM A 242 and the same shall be galvanized. Secondary members, when formed integrally with the display surface, the minimum thickness of hot-rolled steel members furnishing structural support for signs shall be 6.35 mm. except that it shall be galvanized, such members shall not be less than 3.18 mm. thick. Steel members may be connected with one galvanized bolt provided that connection is adequate to transfer the stresses in the members.

2. Anchors and supports, when made of wood and embedded in the soil, or within 150 mm. of the soil, shall all be hardwood of durable species or shall be pressure-treated with approved preservative.

CHAPTER 8
ANCHORAGE

SECTION 29 - ANCHORAGE, IN GENERAL. Members supporting unbraced signs shall be so proportioned so that the bearing loads on the soil, in either direction, horizontal or vertical, shall not exceed safety values.

Braced ground signs shall be anchored to resist the specified wind or seismic load acting in any direction. Anchors and supports shall be designed for safe bearing loads on the soil and for an effective resistance to pull out amounting to a force 25 percent greater than the required resistance for overturning.

SECTION 30 - SIGNS ATTACHED TO BASE. Portable ground signs supported by frames or posts rigidly attached to the base shall be proportioned so that the weight and size of the base will be adequate to resist the wind pressure.

SECTION 31 - SIGNS ATTACHED TO CONCRETE. Signs attached to masonry, concrete or steel shall be safely and securely fastened thereof by means of metal anchors, bolts, or approved expansion screws of sufficient size and anchorage to support safely the loads applied.

SECTION 32 - SIGNS ATTACHED TO WOOD. No wooden blocks or plugs or anchors with wood used in connection with screws or nails shall be considered proper anchorage, except in the case of signs attached to wood framing.

CHAPTER 9 - SIGN PERMIT

SECTION 33 - ISSUANCE OF SIGN PERMITS. It shall be unlawful for any person, juridical or natural, to hang temporary signs, post posters or install billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, signboards and wall signs, or display similar advertising and propaganda materials, unless:

a. An application for a sign permit is filed with the Office of the Local Building Official and approved by the City Mayor or his duly designated representative;

b. The application is accompanied with location plan, structural design, written consent of the owner of the premises and such other pertinent data as may be required by the Local Building Official;

c. Payment of sign fee is made with the Office of the City Treasurer in accordance with Section 37 of this Ordinance;

d. For billboards, business signs, electrical signs, ground signs, projecting signs, roof signs and wall signs, there must be compliance with the requirements and limitations imposed by this Ordinance and other applicable statutes and/or ordinances.

SECTION 34 - EFFECTIVITY OF SIGN PERMIT. Sign permits shall be automatically revoked upon lapse of the following periods, to be counted from the date of issuance of an approved sign permit.

a. One (1) year for billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, signboards and wall signs.

A sign permit issued under the provisions of this Ordinance shall expire and become null and void if the work authorized therein is not commenced within a period of ninety (90) days from the date of the issuance of the permit, or if the work so authorized is suspended or abandoned at anytime after it has been commenced for a period of ninety (90) days. Provided that, no construction and/or display shall be allowed upon abandonment, non-commencement or suspension of work unless upon payment of the sign permit fee with a corresponding surcharge of 25% of the total fees.

b. Two (2) months for posters;

c. Two (2) months for temporary signs;

d. Two (2) months for other advertising and/or propaganda materials.

SECTION 35 - EXTENSION OF SIGN PERMITS. Extension of sign permits shall be granted upon filing of an application in accordance with Section 33 and payment of sign fee in accordance with Section 37, PROVIDED, that the application and payment for extension shall be done within the period sought to be extended.

In cases where the application for extension is done beyond the period sought to be extended, the applicant shall be imposed in addition to an extension sign permit fee, a surcharge equivalent to 25% of the amount due, for reason of delay.

Provided further, that all signs and sign structures must be in good and presentable condition, as may be determined by the Building Official, until such period sought to be extended.

SECTION 36 - EXEMPTION FROM SIGN PERMIT. Sign permit is not required for advertising and/or propaganda materials displayed in the premises of the person displaying it, except, (1) when such material is a billboard, business sign, electrical sign, ground sign, projecting sign, roof sign, signboard and wall sign, or, (2) when sponsored by advertisers/persons whose logo or name/s appeared in the sign displayed and that the said advertisers/persons are not exempt by this Ordinance.

CHAPTER 10
FEES

SECTION 37 - FEES - Fees for the application of Sign Permits to be paid at the Office of the City Treasurer shall be as follows:

I. DISPLAY SURFACE

a) Sign fee shall be collected per square meter of the display surface of billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, signboards and wall signs for such amount as follows:

a.1 outdoor video screen	₱ 150.00
a.2 tri-wind billboard	₱ 100.00
a.3 neon	₱ 75.00
a.4 illuminated	₱ 50.00
a.5 painted-on	₱ 30.00
a.6 others	₱ 15.00

b) Posters (per piece) ..... ₱ 5.00

c) Temporary signs (per square meter) ..... ₱ 5.00

d) Other advertising and/or propaganda materials (per square meter) ..... ₱ 10.00

e) Building lines/staking line and Grade (fixed amount) ,,,,..... ₱ 200.00

II. STRUCTURE

Erection of support for any signboard, billboard and the like shall be charged a fee as follows:

1) up to 4 square meter of signboard ..... ₱100.00
2) in every square meter or fraction thereof ..... ₱ 50.00

III. RENEWAL FEE

Renewal of sign permit shall include among others the corresponding payment for the display surface and support structure of the sign as determined in accordance with this Section and Section 35 of this Ordinance.

IV. OTHER FEES

Sign fees paid under this Ordinance shall be without prejudice to an additional payment of electrical permit fee for signs with elertrical devices as required in accordance with the provisions of the National Building Code.

SECTION 38 - EXEMPTION FROM SIGN FEE. Sign fees are not required for the following advertising and/or propaganda materials but in no case shall the same be exempted from taking a sign permit as thereof provided:

a. Those displayed by government agencies and/or offices, either national or local;

b. Those which are of charitable, religious in nature and for civic purposes; except when sponsored by advertisers/persons whose logo or name/s appear on the sign displayed, which advertisers/persons are not exempt by law. However, they shall be subject to an administrative fee of ₱10.00 per location where such signs/streamers are installed.

c. Those displayed in the premises of the person displaying it, if the material does not exceed 6.00 square meters in area except: (1) when it is a billboard, business sign, electrical sign, ground sign, projecting sign, roof sign, signboard and wall signs, or, (2) when sponsored by advertisers/persons whose logo or name/s appear on the sign displayed, said advertisers/persons are not exempt by law.

Provided however, that this exemption shall not relieve the owner from responsibility in case of any accident arising out of that design, construction, installation, maintenance and removal of signs displayed or exhibited.

CHAPTER 11
MARKING REQUIREMENTS

SECTION 39 - MARKING REQUIREMENTS. It shall be unlawful for any person who has been issued a permit to install, erect, construct, post, paste, hang or attach advertising and/or propaganda materials unless the same bear the following:

a. The name or names of the structure owner;

b. The permit number and its date of issuance;

c. The duration of the display which shall not exceed the period stated in Section 34 of this Ordinance;

SECTION 40 - EXEMPTION FROM THE MARKING REQUIREMENT

Marking is not required for advertising and/or propaganda materials displayed in the premises of the person displaying it, except, (1) when such material is a billboard, business sign, electrical sign, ground sign, projecting sign, roof sign, signboard and wall sign, or, (2) when sponsored by advertisers/persons whose logo or name/s appear in the sign displayed, said advertisers/persons are not exempt by law.

CHAPTER 12
RESTRICTED AREAS

SECTION 41 - RESTRICTED AREAS. It shall be unlawful for any person to install or display any advertising and/or propaganda materials in the following areas:

a. Across public thoroughfares;

b. On any electrical post along streets, islands;

c. On parks and playgrounds;

d. On church and school fences;

e. On sidewalks and public waiting sheds;

f. Traffic light posts;

g. On bridges and bridge approaches (for streamers)

h. On trees along main streets or thoroughfares

i. Pedestrian overpasses and fly-overs, and

j. Waiting sheds.

SECTION 42 - EXEMPTION. Exemption from the prohibition stated in the preceding provision are propaganda materials displayed by or under authority of a government agency, whether national or local, provided such materials are covered with a prior sign permit from the Office of the Local Building Official which shall be removed upon expiry date as indicated in the sign permit.

CHAPTER 13
MAINTENANCE AND MONITORING

SECTION 43 - MONITORING OFFICIAL. The Building Official has the authority to monitor and supervise the appropriateness of the location, site, design, materials and anchorage of signs and sign structures so as to ensure that all those displayed are installed, hanged and posted in accordance with the regulation provided in this Ordinance.

Any signs and sign structures which are not in accordance with this Ordinance, may be removed by the City Engineer and/or other agencies as may be designated by the City Mayor, upon recommendation of the Building Official, provided that prior notice is given to the owner.

SECTION 44 - SIGNS & SIGN STRUCTURES, IN GENERAL. All advertising signs, business signs, roof signs, ground signs, projecting signs, wall signs, temporary signs, streamers, posters and the like shall be maintained by the owner of the structure in a safe and presentable condition. Should a sign become, in the opinion of the Local Building Official, unsafe or an eyesore, the owner and/or advertiser shall, upon notice from the Local Building Official, immediately restore the sign to a safe and satisfactory condition, within fifteen (15) days from receipt of notice.

Such notice shall contain therein that non-compliance to the order within the period stipulated shall warrant the removal of the signs or sign structures.

CHAPTER 14
REMOVAL OF ILLEGAL MATERIALS

SECTION 45 - REMOVAL. The City Engineer or his duly authorized representatives shall remove, upon recommendation of the Building Official, the following at the expense of the displaying party:

1. Those displayed without permit from the Local Building Official, provided that the displaying party shall be given a reasonable period of sixty (60) days from receipt of the notice to comply with the sign permit requirement provided hereof;

2. Those displayed with a permit but without bearing the necessary permit marking requirement as provided in Section 39 hereof, provided that the displaying party shall be given a reasonable period of sixty (60) days from receipt of the notice to comply with the marking permit requirement provided hereof;

3. Those displayed beyond the expiry date as provided in Section 34 hereof, however, if the displaying party intends to renew such permit even beyond the period sought to be extended, the same shall be given a reasonable period of sixty (60) days from receipt of the notice to comply with the renewal requirement provided hereof without prejudice to the payment of surcharge of 25% of the total fees for such delay.

4. Those displayed in public places and/or structures as stated in Section 41;

5. Those billboards, business signs, electrical signs, ground signs, projecting signs, roof signs or wall signs which are installed or constructed in violation of this Ordinance or other applicable statutes and ordinances.

CHAPTER 15 - PENALTY

SECTION 46 - PENALTY. Any person, whether natural or juridical, found violating the provisions of this Ordinance shall be penalized as follows:

a. For the first offense, a fine of not less than ₱1,500.00 but not more than ₱3,000.00, or an imprisonment of not less than seven (7) days but not more than one (1) month, or both, at the discretion of the court;

b. For the second or subsequent offense, a fine of not less than ₱3,000.00 but not more than ₱5,000.00, or an imprisonment of not less than one (1) month and one (1) day but not more than two (2) months, or both, at the discretion of the court;

c. In case the violation is in pursuance of the business of the violator, it shall be meted with a penalty of revocation of business permit upon the second or subsequent offenses;

d. In case the violation has been committed by a juridical person, the person in-charge of management and who has knowledge thereof shall be held responsible.

CHAPTER 16
TRANSITORY PROVISIONS

SECTION 47 - EXISTING SIGNS, IN GENERAL. Signs with permits which were erected before the adoption of this Ordinance but not conforming thereto shall be given a grace period of one (1) year to conform to the same which period shall start from the receipt of said notice.

In case of failure to secure the necessary permit within the grace period, the existing signs shall be removed by the owner. Failure of the owner to remove the sign, the Building Official, shall order the removal of the same at the expense of the owner.

SECTION 48 - VALIDATING PERMIT. Existing signs without permit but conforming to the provisions of this Ordinance shall be allowed to remain provided that the owner shall obtain a validating permit within sixty (60) days from receipt of the notice from the Local Building Official.

Failure to obtain validating permit within the given grace period, shall subject the applicant to additional imposition in addition to the sign permit fee, equivalent to 100% of the amount due, for such delay.

SECTION 49 - NON-OBSERVANCE OF THIS ORDINANCE. Existing signs without permit and not in accordance with the provisions of this Ordinance shall be altered to conform to the same. The owner shall secure the necessary permit not later than sixty (60) days from receipt of notice from the Building Official.

In case of failure to secure permit within the grace period, the sign shall be removed by the owner. Failure of the owner to remove the same, the City Engineer, upon recommendation of the Building Official, shall cause the removal of the sign at the expense of the owner.

CHAPTER 17
FINAL PROVISIONS

SECTION 50 - SEPARABILITY CLAUSE. If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions not affected thereby shall continue to be in full force and effect.

SECTION 51 - REPEALING CLAUSE - Any existing Ordinance or parts thereof which are inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 52 - EFFECTIVITY CLAUSE - This Ordinance shall take effect immediately upon its publication in a newspaper of general circulation in the City of Davao.

ENACTED, August 8, 2000 by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:

LOLITA C. GARCIA
Secretary to the Sanguniang Panlungsod
(City Government Department Head II)

FOR AND IN THE ABSENCE OF THE SECRETARY:

MARGARITO C. DELA CRUZ
Asst. Secretary to the Sangguniang Panlungsod
(City Government Asst. Department Head II)

ATTESTED:

LUIS C. BOMBUYAN
Vice Mayor II
Presiding Officer

APPROVED: Sept. 30, 2000

BENJAMIN C. DE GUZMAN
City Mayor

ATTESTED:

NESTOR M. LADESMA
City Administrator